of states, which are to be annulled. If, for example, a state shall suspend the privilege of a writ of *habeas corpus*, unless when in cases of rebellion or invasion the public safety may require it; should pass a bill of attainder or *ex post facto* law; should enter into any treaty, alliance or confederation; should grant letters of marque and reprisal; should coin money; should emit bills of credit; should make anything but gold and silver coin a tender in payment of debts; should pass a *law impairing the obligation of contracts; should, without the consent of congress, lay imposts or duties on imports or exports, with certain exceptions; should, without the consent of congress, lay any duty on tonnage, or keep troops or ships of war, in time of peace; these are expressly prohibited by the constitution; and thus is announced to the world, the probability, but certainly the apprehension, that states may injure individuals in their property, their liberty and their lives; may oppress sister states; and may act in derogation of the general sovereignty. [*422

Are states then to enjoy the high privilege of acting thus eminently wrong, without control; or does a remedy exist? The love of morality would lead us to wish that some check should be found; if the evil, which flows from it, be not too great for the good contemplated. The common law has established a principle, that no prohibitory act shall be without its vindicatory quality; or, in other words, that the infraction of a prohibitory law, although an express penalty be omitted, is still punishable. Government itself would be useless, if a pleasure to obey or transgress with impunity, should be substituted in the place of a sanction to its laws. This was a just cause of complaint against the deceased confederation. In our solicitude for a remedy, we meet with no difficulty, where the conduct of a state can be animadverted on, through the medium of an individual. For instance, without suing a state, a person arrested may be liberated by *habeas corpus;* a person attainted, and a convict under an *ex post facto* law, may be saved; those who offend against improper treaties may be protected, or who execute them, may be punished; the actors under letters of marque and reprisal may be mulcted; coinage, bills of credit, unwarranted tenders, and the impairing of contracts between individuals, may be annihilated. But this redress goes only half way; as some of the preceding unconstitutional actions must pass without censure, unless states can be made defendants. What is to be done, if, in consequence of a bill of attainder, or an *ex post facto* law, the estate of a citizen shall be confiscated, and deposited in the treasury of a state? What, if a state should adulterate or coin money below the congressional standard, emit bills of credit, or enact unconstitutional tenders, for the purpose of extinguishing its own debts? What, if a state should impair her own contracts? These evils, and others which might be enumerated like them, cannot be corrected, without a suit against the state. It is not denied, that one state may be sued by another; and the reason would seem to be the same, why an individual, who is aggrieved, should sue the state aggrieving. A distinction between the cases is supportable only on a supposed comparative inferiority of the *plaintiff. But the framers of the constitution could never have thought thus: they must have viewed human rights in their essence, not in their mere form. They had heard, seen, I will say, felt that legislators were not so far sublimed above other men, as to soar beyond the region of passion. Unfledged as America [*423